

25STCV27395 25STCV27395

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C08%2F24%2F2026

Source SHA-256: 32c2572360beb3c773551f1d9e0b3aabf153e9655629f44ca8529b430c68d5ba

Case Number: 25STCV27395 Hearing Date: August 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV27395

BOBBY

SAMPSON vs HOLLYWOOD PARK MANAGEMENT COMPANY, LLC, A DELAWARE LIMITED
LIABILITY COMPANY

August

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT HOLLYWOOD PARK MANAGEMENT COMPANY, LLC'S MOTION TO COMPEL ARBITRATION
AND DISMISS OR STAY THE PROCEEDINGS.

RULING:

The Court grants the Motion.

Plaintiff and Defendant

shall arbitrate the controversies between them including this entire action.

This case is ordered stayed until such arbitration is had in accordance with this Order.

The Court sustains all

evidentiary objections filed with the Reply. (E.g., *Witchell v. De Korne* (1986) 179 Cal.App.3d 965, 975, superseded by statute on other grounds as stated in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 529 [attorney declarations inadmissible as to

argument, conclusions and hearsay]; *Floveyor*

Internat., Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 796; and *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319 [attorney declarations inadmissible as hearsay lacking foundation].)

The Court schedules a

Status Conference re: Arbitration on August 24, 2027 at 8:30 a.m. in Dept. 311.

Defendant to give notice.

I.

BACKGROUND

On September 18, 2025, BOBBY

SAMPSON (Plaintiff) filed a Complaint against HOLLYWOOD PARK MANAGEMENT COMPANY, LLC (Defendant), listing Causes of Action for:

1.

DISCRIMINATION (VIOLATION OF GOV. CODE § 12940(A))

2.

HOSTILE WORK ENVIRONMENT– HARASSMENT (VIOLATION OF GOV. CODE § 12940(J))

3.

RETALIATION (GOV. CODE §§ 12940, ET SEQ.)

4.

FAILURE TO ENGAGE IN A TIMELY, GOOD FAITH, INTERACTIVE PROCESS (VIOLATION OF GOV. CODE § 12940(N))

5.

FAILURE TO PROVIDE REASONABLE ACCOMMODATION
(VIOLATION OF GOV. CODE § 12940(M))

6.

WHISTLEBLOWER RETALIATION (VIOLATION OF CALIFORNIA LABOR CODE § 1102.5)

7.

FAILURE TO PREVENT DISCRIMINATION, HARASSMENT, AND RETALIATION (VIOLATION OF
GOV. CODE § 12940(K))

8.

WRONGFUL DISCHARGE IN VIOLATION OF PUBLIC POLICY

9.

DECLARATORY RELIEF

10. INJUNCTIVE RELIEF.

Plaintiff alleges that

instead of accommodating Plaintiff's painful knee and back disabilities,
Defendant placed Plaintiff on administrative leave and ultimately terminated his
employment based upon pretext.

On April 30, 2026, Defendant
filed the Motion to Compel Arbitration, on grounds including that Plaintiff electronically
signed two arbitration agreements with Defendant.

Plaintiff opposes, contending
that the first agreement is not evidenced and the second agreement excludes
preexisting claims encompassing Plaintiff's administrative charges.

II.

LEGAL STANDARD

Parties

petitioning to compel arbitration have the burden to prove the existence of a
valid arbitration agreement by a preponderance of evidence, and parties
opposing have the burden to prove by a preponderance of the evidence any fact

necessary to a defense. (Gonzalez v. Nowhere Beverly Hills LLC (2024) 107 Cal.App.5th 111, 121.)

For

an arbitration agreement to be unenforceable as unconscionable, both procedural and substantive unconscionability must be present. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114.) “[A] compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.” (Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal.App.4th 1105, 1127. Accord, Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1292.) An arbitration agreement that is a required condition of employment, with some one-sided provisions, can be unenforceable as unconscionable. (Martinez v. Master Protection Corp. (2004) 118 Cal.App.4th 107, 113-114; Fitz v. NCR Corp. (2004) 118 Cal.App.4th 702, 712-713, 721-725.)

Where

a court has ordered arbitration, it shall stay the pending action until an arbitration is had in accordance with the order to arbitrate, or another earlier time, and the stay may be with respect to an issue that is severable. (Code Civ. Proc., § 1281.4; Mattson Tech., Inc. v. Applied Materials, Inc. (2023) 96 Cal.App.5th 1149, 1161; Twentieth Century Fox Film Corp. v. Superior Court (2000) 79 Cal.App.4th 188, 192; Heritage Provider Network, Inc. v. Superior Court (2008) 158 Cal.App.4th 1146, 1152, 1154, fn. 12.)

III.

ANALYSIS

Defendant contends that,

via the DocuSign Agreement service, Plaintiff electronically agreed to arbitration twice as is evidenced in the Reply declaration, and unconscionability is not present where the provisions satisfy requirements of Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 102.

Plaintiff criticizes

evidence sufficiency regarding lack of assent and asserts a preexisting claims exclusion and unconscionability due to Defendant not explaining arbitration or advising the unsophisticated Plaintiff about complicated and hidden provisions.

“[I]t is not the presence

or absence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.” (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 361.) “Civil Code section 1633.9 addresses how a proponent of an electronic signature may authenticate ‘The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.’” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 843 [“she did not explain how she arrived at that conclusion or inferred ... the person who electronically signed the 2011 agreement.”]. Accord, Fabian v. Renovate Am., Inc. (2019) 42 Cal.App.5th 1062, 1069 [“did not provide any evidence from or about DocuSign in its petition,...”]; Espejo v. S. California Permanente Med. Grp. (2016) 246 Cal.App.4th 1047, 1062 [factual details to properly authenticated electronic signature, such as using security, passwords, time and IP address]; J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 989 [insufficient proof to show party printed name at the end of e-mail with any intent to formalize electronic transaction].) For showing an electronic signature, a declaration did not detail the security precautions as to use of the username and password; the arbitration agreement time or IP address, creation within the computer system. (See Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 54.) Electronic signatures are attributable to a person if done by the person's act, which may be shown in any manner, including the efficacy of a security procedure. (Perez v. Kaiser Found. Health Plan, Inc. (2023) 91 Cal.App.5th 645, 652 [regarding enforceable arbitration agreement].)

First, Plaintiff's

Declaration, at paragraph 3, states that he does “not recall” the arbitration agreements, which is a minimal, unpersuasive showing regarding assent. In contrast, the Supplemental Declaration of Vice President Janice Ide, filed August 17, 2026, supports both arbitration agreements based upon detailed evidentiary foundation about electronic signatures and security measures followed to identify Plaintiff's manifesting of assent.

Second, Plaintiff's

Declaration, at paragraphs 6 through 7, evidences pending administrative complaints, but not ones filed in court. (See Opposition, 4:9-18.) Further, the federal authorities Plaintiff cites do not govern in this California court. (See *ibid.*, 8:1-9:15.) State procedural rules govern the determination of a motion to compel arbitration. (Vivid Video Inc. v. Playboy Ent. Group, Inc. (2007) 147 Cal.App.4th 434, 440.) And the

agreement clearly excludes preexisting “court actions” without excluding administrative charges. (Reply, 8:17-28.) “[A]n exclusionary clause in an arbitration provision should be narrowly construed.” (Gravillis v. Coldwell Banker Residential Brokerage Co. (2006) 143 Cal.App.4th 761, 771.)

While paragraph 8 of Plaintiff’s Declaration states that Defendant did not explain the arbitration agreement, Plaintiff inconsistently disclaims any agreements based upon not recalling any to be explained, and Plaintiff’s Opposition points to no substantively unconscionable provision. The absence of “authentic informed choice,” due to the lack of straightforward, unbiased explanations of an agreement, may constitute procedural unconscionability. (Gentry v. Superior Court (2007) 42 Cal.4th 443, 470, overruling on other grounds recognized by Marenco v. DirecTV LLC (2015) 233 Cal.App.4th 1409, 1421.) And the memorandum just asserts vaguely and generally that unspecified arbitration provisions are unconscionable. (See Opposition, 11:25-26 (“The language is one-sided and favors HPMC.”).) An egregiously one-sided arbitration provision is unconscionable and therefore not enforceable. (Pinedo v. Premium Tobacco Stores, Inc. (2001) 85 Cal.App.4th 774, 781.)

IV.

CONCLUSION

In summary, the Court grants the Motion and stays this case pending arbitration completion.